

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 501

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO BALLOT MEASURES; AMENDING SECTION 34-1807, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE CIRCULATION OF PETITIONS, TO PROVIDE CERTAIN REQUIREMENTS FOR SIGNATURE GATHERERS, AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 34-1807, Idaho Code, be, and the same is hereby amended to read as follows:

34-1807. CIRCULATION OF PETITIONS -- PAID SIGNATURE GATHERERS -- VERIFICATION OF PETITION AND SIGNATURE SHEETS -- CERTIFICATION OF PETITION SIGNERS -- CERTAIN PETITIONS AND SIGNATURES VOID. (1) Any person who circulates any petition for an initiative or referendum shall be a ~~resident~~ qualified elector of the state of Idaho ~~and at least eighteen (18) years of~~ age.

(2) (a) Any person who accepts payment to circulate a petition for an initiative or referendum shall, prior to accepting a signature:

(i) Verbally notify any potential signatory that such person is accepting payment to gather signatures and provide the name of the person or entity providing payment to such person; and

(ii) Cause to be printed on each page of any petition for an initiative or referendum a prominent and legible declaration that such person is receiving payment in exchange for circulating the petition and the name of the ~~person~~ persons or entities providing payment to such person.

(b) At all times a person is circulating a petition pursuant to paragraph (a) of this subsection, such person shall wear a badge that is clearly visible to any potential signatory and that contains the words "paid petition circulator" on it as well as the name of the persons or entities providing payment to such person.

(c) The Idaho secretary of state shall promulgate rules to implement the provisions of this subsection, which shall provide details regarding the font specifications that shall be required for the printed declaration required under paragraph (a) (ii) of this subsection and the specifications regarding font, shape, color, and size requirements for the badge required under paragraph (b) of this subsection.

(3) Each and every sheet of every such petition containing signatures shall be verified on the face thereof in substantially the following form, by the person who circulated said sheet of said petition, by his or her affidavit thereon, and as a part thereof:

(a) For persons not accepting payment for circulating a petition:

1 State of Idaho)
 2) ss.
 3 County of....)
 4 I, , being first duly sworn, say that I am a ~~resident~~ qualified elec-
 5 tor of the State of Idaho ~~and at least eighteen (18) years of age~~; that I have
 6 not and will not accept remuneration in any way related to the petition; that
 7 every person who signed this sheet of the foregoing petition signed his or
 8 her name thereto in my presence; that I believe that each has stated his or
 9 her name, address and residence correctly; and that each signer is a quali-
 10 fied elector of the State of Idaho and a resident of the county of.....
 11 Signed.....
 12 Post office address.....
 13 Subscribed and sworn to before me this.... day of.....
 14 (Notary Seal) Notary Public
 15 Residing at

16 (b) For persons accepting payment for circulating a petition:

17 State of Idaho)
 18) ss.
 19 County of....)
 20 I, , being first duly sworn, say that I am a ~~resident~~ qualified elec-
 21 tor of the ~~state~~ State of Idaho ~~and at least eighteen (18) years of age~~; that
 22 every person who signed this sheet of the foregoing petition signed his or
 23 her name thereto in my presence, after I verbally notified each individual
 24 signer that I will receive payment in exchange for gathering the signatures
 25 on this sheet; that I believe that each has stated his or her name, address
 26 and residence correctly; and that each signer is a qualified elector of the
 27 State of Idaho and a resident of the county of.....
 28 I am accepting payment for the circulation of the foregoing petition
 29 by.... and the address of such payor is.....
 30 Signed.....
 31 Post office address.....
 32 Subscribed and sworn to before me this.... day of.....
 33 (Notary Seal) Notary Public
 34 Residing at

35 (4) In addition to said affidavit, the county clerk shall carefully ex-
 36 amine said petitions and strike from the petition any names for which he has
 37 determined that the name, address, or signature do not match and confirm that
 38 each name, address, and signature matches those of a qualified elector of the
 39 proper jurisdiction and that the petitions conform to all other provisions
 40 of this section. The county clerk shall attach to the signature sheets a cer-
 41 tificate to the secretary of state substantially as follows:

42 State of Idaho)
 43) ss.
 44 County of....)
 45 To the Honorable....., Secretary of State for the State of Idaho:
 46 I, , County Clerk of.... County, hereby certify that.... signatures on

1 this petition are those of qualified electors in Legislative District Num-
 2 ber.....

3 Signed.....

4 County Clerk or Deputy.

5 (Seal of office)

6 (5) The county clerk shall deliver the petition or any part thereof to
 7 the person from whom he received it with his certificate attached thereto
 8 as above provided. The forms herein given are not mandatory and if substan-
 9 tially followed in any petition, it shall be sufficient, disregarding clerical
 10 and merely technical error.

11 (6) Any petition on which signatures are obtained by a person not a
 12 ~~resident qualified elector~~ of the state of Idaho and at least eighteen (18)
 13 ~~years of age~~ shall be void. The definition of ~~resident qualified elector~~ in
 14 section ~~34-107~~ 34-104, Idaho Code, shall apply to the circulators of initia-
 15 tive and referendum petitions.

16 (7) Any signature that is not a physical signature, including an elec-
 17 tronic signature, is void.

18 (8) Any petition for an initiative or referendum on which signatures
 19 are obtained that is circulated in violation of the disclosure provisions
 20 provided in subsection (2) of this section is void.

21 SECTION 2. An emergency existing therefor, which emergency is hereby
 22 declared to exist, this act shall be in full force and effect on and after
 23 July 1, 2026.